

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

January 26, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JANUARY 12, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JANUARY 20, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown moved to divide the question to allow for a separate vote on a voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Collins. Motion to divide the question carried. Voting "yes" – all members of the governing body. Mr. Brown declared a conflict of interest (business interest) due to the voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Collins moved to approve the voucher payable to Ameri-Tech HVAC Services (\$1,606.37), electric heat repair, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Upon inquiry, Barb Dorr, City Treasurer, reviewed information available for vouchers payable to: Hardung Appraisals (\$275.00), property appraisal required for CDBG grant funding; SESAC, Inc. (\$873.00), annual license involving copy-written music; West Group Payment Center (\$902.30), Westlaw cases/statutes for attorney's office; Wyoming Workers Compensation (\$1,704.74), Cheyenne Housing Authority (payment remitted through the City by CHA) and Police volunteers workers compensation. Main motion to approve remaining vouchers carried. Voting "yes" – all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input on the proposed sale of real property owned by the City of Cheyenne, described generally as all those portions of Lots 2, 3 and 4, Block 553, Original City, Cheyenne, Laramie County, WY (located south of 9th

Street and east of Duff Avenue), to Schroll Cabinets, Inc., which sale will benefit the economic development of the municipality pursuant to Wyo. Stat. §15-1-112(b). The estimated appraised value of said property to be sold is \$3,800.00. Upon inquiry, Mayor Kaysen advised the public hearing item is also affiliated with Agenda Item #14 (Resolution), which identifies the real property involved contains approximately 3,816 sq. ft. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD).” R.C. Reiman, manager for Gateway South, requested a postponement to Feb. 9, 2009 to allow time to complete work on zone change issues. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Mr. Brown moved to postpone for two weeks (to Feb. 9, 2009), seconded by Mr. Pierson. Motion to postpone carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17 ZONING, CHAPTER 17.08 ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO PUD PLANNED UNIT DEVELOPMENT DISTRICT FOR A REPLAT OF BLOCK 5, LOT 1, A PORTION OF BLOCK 5, LOT 2, THE POINTE; AND THAT PARCEL DESCRIBED IN BOOK 1705 AT PAGE 5 OF THE LARAMIE COUNTY CLERK’S RECORDS, SITUATED IN THE N½ OF THE SW¼ OF SECTION 17 AND THE N½ OF THE SE¼ OF SECTION 18, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING, ALSO TO BE KNOWN AS POINTE PLAZA (LOCATED WEST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF GARDENIA DRIVE).” Brad Emmons, AVI, provided general information on walkability levels of quality in conjunction with a recent consultant study through the Metropolitan Transportation Organization (MPO) and pursuant to discussion held at Public Services Committee. Following comments on the walkability study, it was advised MPO staff could provide more detailed information at the next committee meeting. Mr. Brown moved to approve on second reading, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body.

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE VILLAGE, 2ND FILING, A REPLAT OF LOT 31, BLOCK 2, THE VILLAGE SUBDIVISION, CHEYENNE, WYOMING (LOCATED SOUTH OF STOREY BOULEVARD BETWEEN SYCAMORE ROAD AND POWDERHOUSE ROAD).” Mr. Brown moved to adopt with staff recommendation #1, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body. (#5097)

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR A LAND & WATER CONSERVATION FUND GRANT FOR THE MARTIN LUTHER KING

PARK BASKETBALL COURT PROJECT (2007-2010 1% SALES TAX).” Motion (per Consent Agenda) carried. (#5098)

[CA] “A RESOLUTION AUTHORIZING THE PURCHASE OF EQUIPMENT AND SERVICES FROM THE WESTERN IDENTIFICATION NETWORK IN AN AMOUNT NOT TO EXCEED \$48,577.00 FOR THE POLICE DEPARTMENT TO OBTAIN AN AUTOMATED FINGERPRINT IDENTIFICATION SYSTEM (AFIS), USING HOMELAND SECURITY GRANT MONIES” -- referred to Finance Committee (sponsor - Mr. Pierson).

[CA] “A RESOLUTION APPROVING THE SALE OF CITY-OWNED SURPLUS PROPERTY LOCATED GENERALLY SOUTH OF 9TH STREET AND EAST OF DUFF AVENUE, CHEYENNE, WYOMING, AND AUTHORIZING THE MAYOR TO EXECUTE A QUITCLAIM DEED TO CONVEY SAID REAL PROPERTY, CONTAINING APPROXIMATELY 3,816 SQ. FT., TO SCHROLL CABINETS, INC., CHEYENNE, WYOMING, TO BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY IN ACCORDANCE WITH WYO. STAT. §15-1-112 (B)” -- referred to Finance Committee (sponsor - Mr. Spiker).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR POINTE PLAZA, A REPLAT OF BLOCK 5, LOT 1, A PORTION OF BLOCK 5, LOT 2, THE POINTE; AND THAT PARCEL DESCRIBED IN BOOK 1705 AT PAGE 5 OF THE LARAMIE COUNTY CLERK’S RECORDS, SITUATED IN THE N½ OF THE SW¼ OF SECTION 17 AND THE N½ OF THE SE¼ OF SECTION 18, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF GARDENIA DRIVE AND POWDERHOUSE ROAD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR JEFFERSON HILLS SUBDIVISION, A REPLAT OF A PORTION OF LOT 1, BLOCK 1, LEY SUBDIVISION AND TRACT 2, HERMANN MEADOWS SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO E. JEFFERSON ROAD, EAST OF S. GREELEY HIGHWAY)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR SNOWARDT SUBDIVISION, A REPLAT OF THE SOUTH 120 FEET OF TRACT 4, CAPITOL TRACTS, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO HELLWIG ROAD, WEST OF YORK AVENUE)” -- referred to Public Services Committee (sponsor - Mr. Brown).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] County Preliminary Plat for Foxtail Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts, Laramie County, Wyoming (located south of and adjacent to E. Fox Farm Road, east of S. Greeley Highway) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for the provision of a City/County Paintball Facility (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried. (#5328) Upon inquiry under other City business, Todd Feezer, Assistant Parks and Recreation Director, provided information on staffing levels and anticipated off-set of costs from revenue to be received from the operation.

[CA] Softball Officiating Agreement between the City of Cheyenne, Recreation Department, and the Cheyenne Umpires Association Wyoming, for 2009 and 2010 umpire and scorekeeper services. Motion (per Consent Agenda) carried. (#5329)

[CA] Consideration of FAA Grant #3-56-0005-42 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board in the amount of \$100,000.00, for the implementation of a Safety Management System (SMS) -- referred to Finance Committee.

[CA] Consideration of FAA Grant #3-56-0005-43 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board, in the amount of \$324,621.00, for an update to the Airport's Master Plan -- referred to Finance Committee.

[CA] Consideration of a Joint Powers Board Agreement between the County of Laramie, the City of Cheyenne, and Laramie County Community College, to create the Laramie County Early Education and Development Joint Powers Board -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and L and L, Inc., for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and L and L, Inc., for the provision of golf services at the Airport Golf Course -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 3 to Contract No. 4968 between the City of Cheyenne, Engineering Department and Wyoming Department of Transportation for Pershing Blvd. between Pioneer Ave. and 1-25 (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$201,744.00). (#4968)

[CA] Contract Modification No. 1 to Contract No. 5316 between the City of Cheyenne and J-2 Contracting Co., Inc., for additional work and amenities for the David R. Romero South Cheyenne Community Park. (Wyoming Business Council) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-08-09 for annual contracts for snow removal and other emergency services (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (Aztec Construction Co., Inc. and S&S Builders, LLC). (#5330/#5331)

[CA] Consideration of Bid #R-15-09 for furnishing ammunition for the Police Dept., from Ultramax Ammunition of Rapid City, SD; Scottsdale Gun Club of Scottsdale, AZ; BVAC, Inc. of Florence, MT, and Lawmen's and Shooters' Supply, Inc. of Vero Beach, FL. Motion (per Consent Agenda) carried (total bid amount of \$58,020.00).

[CA] Consideration of Bid #M-10-09 for a contract between the City of Cheyenne and DC Construction, for a 40' x 56' post frame building at Taco John's Ice and Event Center -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of the appointment of Jack R. Spiker to the Downtown Development Authority Board, to be confirmed February 9, 2009.

OTHER CITY BUSINESS:

John Fafoutakis commented on potential annexation areas with close proximity to railroad tracks and safety issues, and safety hazards involving drivers operating vehicles without adequately clearing snow from vehicles resulting in limited visibility.

Mr. Valdez and Ms. Broyles advised that billboards have been placed throughout the community in conjunction with the anti-graffiti and vandalism program, and provided contact information to report violations as well as to receive graffiti clean-up information.

Ms. Broyles announced a meeting will be held Feb. 18, 2009 at 6:30 p.m., Bain Elementary School, to provide information to Sun Valley area residents on establishing a neighborhood watch program, and provided a brief update on the Cheyenne Methamphetamine Initiative program.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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